

25SMCV03853 25SMCV03853

County: los-angeles

Division: Civil Law and Motion

Department: 207

Hearing date: 2026-07-09

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TENTATIVE RULING

DEPARTMENT

207

HEARING DATE

July 9, 2026

CASE NUMBER

25SMCV03853

MOTION

Motion to Correct the Record

MOVING PARTY

Plaintiff Khaled Ouaaz

OPPOSING PARTIES

none

BACKGROUND

This case arises from a dispute between employee and employer.

On July 28, 2025, Plaintiff Khaled Ouaz a/k/a Kade Wise ("Plaintiff") brought suit against Defendants 20th Century Television, Inc., fka 20th Century Fox Television, Inc. ("20th Century"); Lee Daniels Entertainment, Ltd. ("Lee Daniels Ent."); Danny Strong Productions ("Danny Strong Prod."); Imagine Entertainment, Inc. ("Imagine"); Dana Walden ("Walden"); Gary Newman ("Newman"); Lee Daniels ("Daniels"); Danny Strong ("Strong"); Sanaa Hamri ("Hamri"); Paolo Nieddu ("Nieddu"); Brian Grazer ("Grazer"); Carlito Rodriguez ("Rodriguez"); Jonnie Davis ("Davis"); Carolyn Cassidy ("Cassidy"); Howard Kurtzman ("Kurtzman"); Brett Mahoney ("Mahoney"); Diane Ademu-John ("Ademu-John"); Ilene Chaiken ("Chaiken"); Craig Berger ("Berger"); Matt Pyken ("Pyken"); Dennis Hammer ("Hammer"); Joshua Allen ("Allen"); Eric Haywood ("Haywood"); Jasheika James; Janeika James; Dianne Houston ("Houston"); and Jamie Rosengard ("Rosengard").

The operative First Amended Complaint ("FAC") was filed on September 15, 2025, alleging eighteen causes of action as follows:

1.

Breach of Contract

2.

Intentional Misrepresentation

3.

Fraudulent Concealment

4.

Actual Fraud

5.

Defamation of Character

6.

Breach of Implied Covenant of Good Faith and Fair
Dealing

7.

Intentional Interference with Contractual Relations

8.

Intentional Interference with Prospective Economic
Relations

9.

Demotion Discrimination

10. Promotion

Discrimination

11. Political

Discrimination

12. Intersectional

Discrimination

13. Disparate

Impact Discrimination

14. Retaliation

15. Right

of Publicity

16. Civil

Conspiracy

17. Intention

Infliction of Emotional Distress

18. Negligence

On April 30, 2026, the Court sustained the demurrer of Defendants 20th Century, Lee Daniels Ent., Imagine, Walden, Newman, Daniels, Hamri, Grazer, Cassidy, Ademu-John, Chaiken, Brewer, Allen, Haywood, and Rosengard without leave to amend on the grounds that, despite being offered numerous opportunities, Plaintiff was ultimately unable to articulate any facts that could be added to the FAC to correct the deficiencies identified by the Court.

On June 10, 2026, the Court denied Plaintiff's motion for leave to amend the complaint to re-allege the causes of action to which the Court previously sustained the demurrer without leave to amend.

Plaintiff now moves to correct the record of the Court's June 10, 2026 Minute Order. The motion is unopposed.

ANALYSIS

Every court has the power to amend and control its process and orders so as to make them conform to law and justice. (Code Civ. Proc., § 128, subd. (a)(8).) In this regard, the Court may, on its own motion or upon motion of the injured party, correct clerical mistakes in its orders or judgment as entered, so as to conform to the order or judgment directed. (Code Civ. Proc., § 473, subd. (d).

Plaintiff contests the Court's characterization of Plaintiff's position that Plaintiff "dismissed concerns" or "found reasons not to investigate" his potential claims, whereas Plaintiff's position is that he lacked suspicion altogether until years after the fact.

The Court is well aware of Plaintiff's position that it did not dawn on him that he had potential claims until years later. But ultimately, his claims are based on facts Plaintiff was aware of at the time of the events in question. The Court's "characterization" that Plaintiff "dismissed concerns" that he was aware of in real time during the events described in the operative complaint, yet "found reasons not to investigate" constitute the Court's findings and interpretation of the facts. The Court is not obligated to adopt Plaintiff's framing of the issues in making its own findings of fact and conclusions of law. Although Plaintiff may disagree with the Court's findings that he was on inquiry notice of his claims, yet failed to diligently investigate and pursue them, does not turn the Court's findings into clerical errors in need of correction.

Nor was it a clerical error to determine that Plaintiff could not cure the fundamental deficiency by pleading more specific facts or "expand[ing] upon" the chronology of events. The basic chronology already pled demonstrates that Plaintiff was on inquiry notice as a matter of law at or around the time of the events, yet failed to timely investigate and pursue his

potential claims. More factual details would not change that fact.

Nor did the Court mischaracterize the record by stating that Plaintiff failed to articulate what specific facts he could add to cure the identified deficiency.

Vague references to “claim-specific chronology” and “claim-specific factual allegations” are not facts themselves.

Further, at the hearing, Plaintiff repeatedly emphasized that the Complaint, as alleged, was already sufficient, and focused on how he could re-frame the issues to be more convincing to the Court, not the correcting, clarifying, or adding new facts that would change the factual narrative into one that was not time-barred, as the Court has requested of him.

CONCLUSION AND ORDER

Finding no errors warranting correction, clerical or otherwise, the Court denies Plaintiff’s motion to correct the record.

Plaintiff shall provide notice of the Court’s ruling and file the notice with a proof of service forthwith.

DATED: July 9, 2026 _____/s/ _____

Michael
E. Whitaker

Judge
of the Superior Court